

Tamil Nadu Special Police Youth Brigade Act, 2013

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State of Tamilnadu- Act

Tamil Nadu Special Police Youth Brigade Act, 2013

TAMILNADU

India

Tamil Nadu Special Police Youth Brigade Act, 2013

Act 3 of 2013

Published on 23 February 2013

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Tamil Nadu Special Police Youth Brigade Act, 2013

(Act

No. 3 of 2013

)

Last Updated 23rd January, 2020

[Dated 23.02.2013]

An Act to provide for the constitution of a separate special police youth brigade in the State of Tamil Nadu to attend the peripheral works entrusted to trained police personnel.

Be it enacted by the Legislative Assembly of the State of Tamil Nadu in the Sixty-fourth Year of the Republic of India as follows:-

1.

Short title and commencement.

(1)

This Act may be called the Tamil Nadu Special Police Youth Brigade Act, 2013.

(2)

It shall come into force on such date as the State Government may, by notification, appoint.

2.

Definitions.

- In this Act, unless the context otherwise requires,-

(a)

"Government" means the State Government;

(b)

"prescribed" means prescribed by rules;

(c)

"youth brigade" means the Tamil Nadu Special Police Youth Brigade constituted under section 3.

3.

Constitution of police youth brigade.

(1)

There shall be a separate police youth brigade in the State of Tamil Nadu called the Tamil Nadu Special Police Youth Brigade.

(2)

The terms and conditions of service of the members of the youth brigade shall be such as may be prescribed.

4.

Functions and duties of youth brigade.

- The following shall be the functions and duties of the youth brigade:-

(a)

to drive the vehicles of the Police Department;

(b)

to deliver tapal and Data Entry;

(c)

to maintain police quarters; and

(d)

to assist the police force in prevention of loss of life of accident victims.

5.

Control and direction.

(1)

The general superintendence, direction and control of the youth brigade shall vest in, and be exercised by, the Government and subject thereto and to the provisions of this Act and rules, the command and supervision of the youth brigade shall vest in an officer to be authorised by the Government.

(2)

The authorised officer shall, in the discharge of his duties under this Act, be assisted by such other officers as may be directed by the Government.

6.

Selection of members of youth brigade.

(1)

The members of youth brigade shall be selected by the authorised officer referred to in section 5, in such manner as may be prescribed.

(2)

No person shall be selected as a member of the youth brigade unless he possess such qualifications as may be prescribed.

(3)

Every member of the youth brigade shall be paid such honorarium as may be prescribed.

7.

Liability for active service.

(1)

Every member of the youth brigade shall be liable to serve in any part of the State of Tamil Nadu.

(2)

Every member of the youth brigade, not on leave or under suspension, shall, for the purposes of this Act, be always on active service and may, at any time, be employed or deployed in any manner which is consistent with the duties and responsibilities of the youth brigade under this Act.

8.

Training.

(1)

Every member of youth brigade shall undergo such training for such period as may be prescribed.

(2)

Every member of the youth brigade, who has successfully completed the training, may appear for the common State level examination to be specially conducted by the Tamil Nadu Uniformed Services Recruitment Board for youth brigade members for recruitment as police constable.

9.

Suspension, termination, etc.

(1)

Any member of the youth brigade may be suspended by the authorised officer referred to in section 5, if he neglects or refuses to discharge his duty without reasonable cause or commits any breach of discipline or found guilty of misconduct or physically unfit to continue or the continuance is detrimental to a good order, welfare or discipline of the brigade or is prejudicial to the security of the State or any part thereof.

(2)

The authorised officer under section 5 may, by order in writing, terminate the appointment of any member of the youth brigade in the public interest.

(3)

A member of the youth brigade may, by writing under his hand addressed to the authorised officer referred to in section 5, withdraw himself from the youth brigade.

10.

Appeal.

(1)

Any member of the youth brigade aggrieved by an order under sub-section (2) of section 9 may, within thirty days from the date of such order, prefer an appeal to such authority as may be prescribed.

(2)

The decision of the appellate authority shall be final and shall not be called in question in any court.

11.

Protection of action taken under this Act.

- No suit, prosecution or other legal proceeding shall lie against any member of the youth brigade for anything which is in good faith done or purported to be done or omitted to be done in pursuance of this Act.

12.

Power to make rules.

(1)

The Government may make rules for carrying out all or any of the purposes of this Act.

(2)

In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:-

(a)

the terms and conditions of service of the members of the Tamil Nadu Special Police Youth Brigade under section 3;

(b)

the manner in which a member of youth brigade shall be selected;

- (c)
the qualifications for selection as a member of youth brigade;
- (d)
the honorarium to be paid to a member of youth brigade;
- (e)
the authority to be prescribed under section 10;
- (f)
the areas of training and the duration of such training;
- (g)
any other matter which is required to be or may be prescribed.

(3)
All rules made under this Act, shall be published in the Tamil Nadu Government Gazette and unless they are expressed to come into force on a particular day shall come into force on the day on which they are so published.

(4)
Every rule made under this Act shall, as soon as possible after it is made, be placed on the table of the Legislative Assembly, and if, before the expiry of the session in which it is so placed or the next session, the Assembly makes any modification in any such rule or the Assembly decides that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be, so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

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